Marbury v. Madison

U.S. Supreme Court · 5 U.S. 137 · 1803 · Chief Justice John Marshall (majority)

Source: Marbury v. Madison, 5 U.S. 137 (1803), opinion of the Court by Chief Justice Marshall, text via Cornell Legal Information Institute. Public domain.

When Federalist John Adams lost the 1800 election he packed the courts with last-minute appointments. William Marbury was one of those 'midnight judges.' When Jefferson's new Secretary of State, James Madison, refused to deliver Marbury's commission, Marbury sued. Chief Justice Marshall — a Federalist — sided politically with Marbury but ruled the Court could not order delivery, because the law Marbury sued under was itself unconstitutional. In doing so, Marshall established the principle of judicial review.

Connect: The Marshall Court cases (McCulloch, Gibbons) built on the debate from Class 6 over broad vs. strict construction. Which side won at the Court?

Key Passages

The Judiciary Act's flaw

> The authority, therefore, given to the supreme court, by the act establishing the judicial courts of the United States, to issue writs of mandamus to public officers, appears not to be warranted by the constitution

It is emphatically the province

> It is emphatically the province and duty of the judicial department to say what the law is. Those who apply the rule to particular cases, must of necessity expound and interpret that rule. If two laws conflict with each other, the courts must decide on the operation of each.

Holding

> the particular phraseology of the constitution of the United States confirms and strengthens the principle, supposed to be essential to all written constitutions, that a law repugnant to the constitution is void, and that courts, as well as other departments, are bound by that instrument.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The 'Revolution of 1800': Federalist John Adams lost to Jefferson and filled the courts with last-minute 'midnight judge' appointments; Madison withheld Marbury's commission.
Intended Audience *Who was the source written for?*	The parties to the case, Congress, and the Jefferson administration, and through them the legal and political community.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Chief Justice John Marshall, a Federalist and Adams appointee, who wanted to strengthen the judiciary without starting a fight with Jefferson that the Court would lose.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. LEQ Thesis (1 pt): Write a defensible thesis evaluating the political vs. constitutional significance of Marbury v. Madison.
2. Explain how Marshall managed a short-term political loss while securing a long-term institutional win.
3. How did judicial review reshape the balance of powers established in 1787?